Judicial Practices and Procedures (Criminal)
(last modified June 2025)

Dawn D. Nichols, Judge
Michele A. Westfall, Judicial Assistant

Contact Information

Mailing Address: 1769 E. Moody Blvd., Bldg. #1, Bunnell, FL 32110
Physical Address:1769 E. Moody Blvd., Bldg. #1, Bunnell, FL 32110
Telephone: (386)313-4510
Fax: (if applicable) (386)437-7364
E-mail: mwestfall@circuit7.org

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A. Communications with the Judicial Office

B. **Method of Communication:** All communication to the judicial office must be submitted by e-mail to the Court's Judicial Assistant at: mwestfall@circuit7.org. The subject line must contain the case number, case name, and relevant matter including docket number (e.g., 2025 CF 000001 – State v. Smith - 2-Hour Suppression Hearing Requested – doc #32).

X. **Ex parte Communications:** All communications with the judicial office must comply with Canon 3 of the Code of Judicial Conduct, which prohibits a judge from initiating, permitting, or considering ex parte communications and from considering other communications outside the

presence of the parties concerning a pending or impending proceeding, unless authorized by law. All parties must be copied on any e-mail directed to the judicial office, unless an ex parte communication is authorized by law.

- **Unsolicited Communications:** Unsolicited communications from non-parties will not be considered by the court. Parties may only contact the judicial office in accordance with these practices and procedures.

- **Response to Inquiries:** The Court's Judicial Assistant is not authorized to provide legal advice. If the Court's Judicial Assistant is out of the office, you will receive an automated response to your email directing you how to proceed in her absence. Responses to e-mails will be given in the order in which the e-mails are received.

B. **Scheduling Procedures**

X. **Court Schedule:** The Court uses a traditional criminal court calendar cycle, which includes regular arraignments, pretrial conferences, status hearings, docket soundings, and a monthly jury trial week. Arraignments are scheduled on Tuesday mornings. Bond hearings are scheduled on Tuesdays and Wednesdays (afternoons usually). Pretrial conferences are scheduled the Wednesday of each third full week of the month. Docket soundings are scheduled the Wednesday of each first full week of the month. Trials are scheduled the second full week of each month. Violation of probation/community control hearings are scheduled Tuesdays and Wednesdays. Other hearings are scheduled on an as needed basis.

Δ. **Scheduling Hearings:** Hearings must be requested by e-mail to the Court's Judicial Assistant at mwestfall@circuit7.org The subject line must contain the case number, case name, and relevant matter including docket number (e.g., 2025 CF 000001 – State v. Smith - 2-Hour Suppression Hearing Requested – doc #32). All parties must be copied on any e-mail directed to the judicial office, unless an ex parte communication is authorized by law.

E. **Notice of Hearing:** A notice of hearing must be filed and served by the party scheduling the hearing immediately after reserving hearing time. A notice of hearing must include the following minimum information: the case style including case number; the date, time, and location of the hearing; the matter(s) to be heard including docket number or filing date of each motion; the judge presiding over the hearing; and the amount of time reserved for the hearing. A notice of hearing involving any remote appearance must list the Zoom meeting information. All notices of hearing must contain the ADA notification required by Florida Rule of General

Practice and Judicial Administration 2.540.

- **Order of Proceedings:** Matters will be heard in the order they are scheduled to occur, or as otherwise determined by the Court. Matters in which the parties are appearing in person will generally be heard before matters in which the parties are appearing by remote technology.

- **Continuance Procedure:** Continuances are disfavored and will be granted only upon a showing of good cause.

- **Cancelling Hearings:** Hearings noticed by the Court may only be cancelled by the Court. Hearings noticed by one or more parties may only be cancelled by the Court, the scheduling party, or by agreement of all parties involved in the hearing. You must cancel hearings by notifying the Judicial Assistant immediately. You must also immediately file and serve a notice of cancellation on opposing counsel and any self-represented litigant.

C. Remote Appearance

- **Remote Appearance Procedure:** The court maintains a hybrid virtual courtroom, allowing parties to appear either in person or remotely, as provided by Florida Rule of General Practice and Judicial Administration 2.530. Requests to use communication technology for an appearance must be made by motion.

- **Platform Used:** The court uses Zoom for remote appearances.

- **Platform Meeting ID#:** Meeting ID#: 386-313-4510

- **Requirements:**

- **Other Remote Appearance Procedures:**

  - IF USING THE ZOOM APP:
    - Go to the downloaded App
    - Go to Join a Meeting
    - The meeting ID is: 386-313-4510
    - Type in your name to identify your phone number by name
    - Click “join the meeting”
    - Enable Video and Audio
    - You should hear: “You are in the meeting”

- IF USING A COMPUTER:
  - Go to https://app.zoom.us/wc
  - Go to Join a Meeting
  - The meeting ID is: 386-313-4510
  - Enable Video and Audio if not automatically enabled
  - Type in your name to identify your phone number by name
  - You should hear: "You are in the meeting"

- Make certain your device is on mute. Please do not speak until your case is called.

D. Submission of Orders and Judgments

DI. Format: All proposed orders must be submitted in Word or PDF format through the e-portal unless otherwise instructed by the Judge. To submit through the e-portal, go to https://www.myflcourtaccess.com/default.aspx and you will have to file through "Pleading on Existing Case."

- **Deadline for Submissions:** Proposed orders must be submitted within the number of days directed by Judge Nichols.

E. Courtesy Copies of Case Law and Other Documents

- **When Required:** Courtesy copies of case law may be submitted to the court for any evidentiary proceeding.

- **Format:** PDF/a format or Word document is preferred, if submitted electronically.

- **Submission Method:** E-mail, U.S. mail, or hand delivery of courtesy copies is acceptable.

F. Emergency and Other Urgent Matters

- **Requirements:** If a party believes there is a factual basis for setting an emergency hearing, a detailed motion setting forth the following must be filed: (1) the issues to be resolved, (2) the reasons why an emergency hearing is necessary, and (3) the amount of time needed for each party's presentation.

- **Scheduling:** If the court determines that an emergency exists, a hearing will be scheduled unilaterally by the court. All parties must make themselves available for the emergency hearing, barring exigent

circumstances.

G. Exhibits for Evidentiary Proceedings

- **Submission Method:** Trial exhibits must be submitted to the Clerk's Office no later than three business days before the hearing or trial. Marked exhibits will be assigned a letter for identification and will receive a numerical designation if admitted as evidence.

H. Pretrial Procedures and Conferences

- **Status Conference:** Any party may request a status conference when a case requires. Parties represented by counsel are not required to appear at a status conference, unless otherwise ordered by the Court.

- **Requirements:** Any request by a party for a status conference must articulate the reasons for the necessity of the conference.

- **Scheduling:** If the court agrees that a status conference is required, the Court will schedule a status conference and provide the notice directly, or through the Clerk of Court.

I. Setting Case for Trial

- **Procedure:** The Court will schedule cases for trial at the pretrial conference.

- **Notice Period:** After Docket Sounding, the Court will assign cases to specific days during the trial period. Attorneys, parties, and witnesses are expected to be available during the entire trial period.

- **Other Procedures for Setting Case for Trial:** Transport orders must be provided timely. Extraditions require at least 10 days to transport an incarcerated person from other facilities or jurisdictions.

J. Forms

K. Division forms are available by clicking on the links below:

- Plea form
- Plea form (Spanish)
- VOP Admission form
- VOP Admission form (Spanish)

K. **Out of County Pleas**

- **Procedure:** In order for a Defendant to enter a plea in a case pending in Volusia, Putnam, or St. Johns counties, you must notify the Clerk's office at criminal@flaglerclerk.gov and the Court's Judicial Assistant at mwestfall@circuit7.org least 24 hours prior to the plea hearing. You **must include** in your email the county and case number, and you must attach the charging affidavit or the VOP affidavit.

Λ. **Other Division Procedures**

M. **ADA Accommodations:** If you need an ADA accommodation, please contact Court Administration, 101 n. Alabama Ave., Buite B206, DeLand, FL 32724; (386) 257-6096.

N. **Interpreter Requests:** If a spoken language court interpreter is needed for a hearing or trial, please click here. For more information, please email interpreter@circuit7.org or call (386) 626-6566. If a sign language interpreter or accommodation is needed for a hearing or trial, please contact Court Administration at 101 N. Alabama Ave., Suite 206, DeLand, FL 32724; (386) 257-6096; SignLanguageRequests@circuit7.org.

O. It is Defense counsel's obligation to arrange for Interpreter Services needed for all court proceedings.